

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

USL AUTO EXPORTING INC., *Complainant*

v.

EASY SHIPPING CORPORATION, *Respondent*.

DOCKET NO. 23-13

Served: January 29, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING MOTION FOR JUDICIAL ASSISTANCE AND SETTING DEADLINES

On January 26, 2024, Complainant USL Auto Exporting Inc. filed a motion seeking judicial assistance as a result of Respondent Easy Shipping Corporation's alleged failure to communicate regarding the Joint Status Report. Complainant represents that, since December 28, 2023, it has made "numerous attempts to engage Easy Shipping in a dialogue regarding the Joint Status Report, primarily through email communications," to which Easy Shipping has not responded.

On December 23, 2023, Easy Shipping filed a document labeled Response for Memorandum of Facts, which appears to be an answer to the complaint. The Joint Status Report was due January 8, 2024, and was not filed. On January 5, 2024, Complainant filed a motion for summary judgment – Easy Shipping's opposition was due January 22, 2024 and was not filed. Commission Rule 65 provides that at party may be deemed in default if the party fails to "answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding." 46 C.F.R. § 502.65(a)(2). Given Easy Shipping's failure to respond to the motion for summary judgment and failure to cooperate in filing the joint status report, USL Auto Exporting's motion is **GRANTED**. Easy Shipping is **ORDERED** to file its response to the motion for summary judgment no later than February 6, 2024. Easy Shipping is further **ORDERED** to contact USL Auto Exporting by that date for the purpose of preparing the Joint Status Report. The Joint Status Report must be filed no later than February 7, 2024.

Easy Shipping's failure to abide by these deadlines may result in entry of default judgment against Easy Shipping without further notice.

**Alex Michael
Chintella**

Digitally signed by
Alex Michael Chintella
Date: 2024.01.29
14:40:18 -05'00'

Alex M. Chintella
Administrative Law Judge